

Herve 1952

Note on this selection (2026 completion): this entry now contains two sections of vol. I. The Corollaria generalia (nn. 497–502, pp. 492–495) include Hervé’s direct treatment of the universal-acceptance principle at n. 500 c): the axiom “Papa dubius, Papa nullus” holds only where the doubt and secession are of the whole Church (quoting Franzelin, th. 13 — see the 1887 Franzelin entry); and “if the universal Church secedes from some Pontiff, it is an infallible sign... that he never was the true and legitimate Pontiff, since Christ, faithful to his promises, cannot permit the whole Church to adhere to a false Pontiff or to reject the true one.” The De factis dogmaticis section (nn. 514–515, pp. 501–503) supplies the framework: the legitimacy of a council or of a Pope as the first class of dogmatic facts, with the Church’s infallibility about it flowing from the indefectibility of the Church itself.

Part II, Chapter II — General Corollaries (nn. 497–502, pp. 492–495)

497. I. The Council is not above the Pope. — 1. From what has been said, it is clearly demonstrated that *a council together with the Pope* is not superior to the Pontiff taken separately; in both cases there is present the very *same* supreme authority, the same infallibility, and nothing more [c. 228, § 1]. For the bishops, who by themselves possess only subordinate power, but supreme power in council insofar as they are united to the Pontiff himself, add nothing to the power of the Pope—neither of themselves nor by reason of their assembly in council—since his power is, *by itself and from itself alone*, full and supreme.

2. A council *without the Pope*, however, is not only not superior to the Pontiff, as the Gallicans wished to maintain, but is absolutely *inferior*, as is evident from the entire doctrine concerning the primacy. Therefore, the *Vatican Council* rightly renewed the teaching of *Pius II* condemning appeals from the Pope to a council¹, with these words, D. 1830: “*Therefore, they stray from the straight path of truth who affirm that it is lawful to appeal from the judgments of the Roman Pontiffs to an ecumenical council as to an authority superior to the Roman Pontiff.*” Code c. 228, § 2; 2332.

3. Therefore, *when the See is vacant*, although the Church remains *one* on account of the promises of perpetual indefectibility and the permanence of the Spirit of truth within her, and cannot defect from the tradition of faith nor from communion with the See of Peter by falling universally into heresy or schism, nevertheless *she can neither define new dogmas nor issue decrees binding upon the universal Church*. For *when the See is vacant*, the college of bishops is *not ecumenical*, and there is lacking a subject in whom power over the universal Church resides².

498. II. What of the Constantian decrees? — The adversaries falsely appeal to the decrees promulgated by the Council of *Basel* as innovations, but issued by the Council of *Constance*, by which it declares that it “*has power immediately from Christ, to whom anyone of whatever status or dignity, even if he be papal, is bound to obey in those matters which pertain to faith and the extirpation of the said schism*”³.

1° For these decrees were not made *conciliarly*, because they were issued by the *sole* obedience of John XXIII and indeed *not in its entirety*, which certainly did not represent the universal Church; but they were also issued *tumultuously*, with votes given by *nations*, with laymen themselves and priests casting votes; moreover, they were placed not among the decrees of faith, but among mere *synodal constitutions* by the council itself.

Now indeed, Martin V certainly approved the decrees of the Council of Constance against Wycliffe, Huss, and Jerome of Prague, as well as the decree concerning communion under one species and the safe conduct given to heretics (*Denz.* 581 ff.); but the decrees *concerning the superiority of a council over the Pope*, he utterly rejected and rendered null and void, far from approving them.

1. For somewhat earlier he had decreed that “*it is not lawful for anyone to appeal from the Supreme Judge, namely the Apostolic See or the Roman Pontiff...*”; Gerson himself testifies to this (*How and Whether It Is Lawful to Appeal from the Supreme Pontiff*), attacking that mandate of the Pontiff as being contrary to the Constance decisions.

2. Afterwards he again approved and ratified “*each and every decree of the Council of Constance... which had been established conciliarly in matters of faith, and not otherwise or in any other manner*”. Therefore [the conclusion follows].

3. *Juan de Torquemada*, *Saint Antoninus* and other holy and learned men rejected those decrees, which they would by no means have done if they had been fortified by pontifical sanction.

4. Nor was the Council of Constance ever received and acknowledged otherwise by subsequent Pontiffs, namely *Eugene IV*, *Pius II*, and *Leo X*⁴. Therefore [the conclusion follows].

2° Moreover, a) from the very *affirmation of the Council Fathers* who declare that these things are done “for the extirpation of the present schism,” and that the Pope himself is bound to obey “in those matters which pertain to the extirpation of the said schism”; b) from the *testimony of Johannes de Turrecremata*⁵: “that decree of those Fathers *does not speak of any synod universally, but of that one singularly* for whose time there was not in the Church one undoubted pastor of the whole Church”; it is evident that decrees of this kind regard the schism *then prevailing* and concern *only the case of a Pope of that time*, a doubtful Pope, or at most generally regard the case of any doubtful Pope.

499. III. Whether a Council, apart from the Pope, can determine anything concerning the person of the Pope?⁶ Regarding the election of the Pope: Ordinarily it pertains to the Pontiff alone to determine the manner of *transmission of supreme power*, and accordingly also of *election*, through which that transmission is accomplished, since the primacy was conferred in his own right upon him alone in the person of Peter. In actual fact, however, the Pontiffs have established laws by which the pontifical election is regulated, which, when the see is vacant, can be legitimately conducted only by those electors previously designated by the Pope.

In extraordinary circumstances, however, *if by chance* it should be necessary to elect a Pontiff when the conditions of a regular election could not be observed, it does not seem at all contrary that the power of election would devolve to a *general council*, since by natural law any society has the right to provide for itself, and in such a case there would be no other more suitable and efficacious means.

In fact, however, this has *never occurred*, because the Council of Constance proceeded legitimately to the canonical and certain election of the one future Supreme Pontiff, namely Martin V, *not from itself and by its own authority, but from the faculty granted to it* by the true and legitimate Pontiff Gregory XII⁷, before he himself renounced the papacy—when, through the abdication of the same Gregory, the Apostolic See was truly left vacant.

500. Regarding the deposition of the Pope: The Pontiff certainly can freely renounce the papacy of his own accord and ceases from the pontificate by the very fact of abdication (canon 221); and then, the Church can provide for the See which it recognizes as vacant with full right and according to custom. In no way and for no reason, however, can the Pontiff be deposed *by a council*, since a superior cannot be judged by an inferior: “*The First See is judged by no one.*” Canon 1556.

a) *Not by reason of moral depravity*: For a scandalous Pope *is a true pope* who must be obeyed in all things, and the Church cannot depose him, but can and ought to supplicate the Lord that He Himself might apply a remedy.

b) *Not by reason of heresy*: For given that, as a *private person*, one who is publicly, *notoriously* and *contumaciously* heretical could become Pontiff—which theologians generally deny, considering the gentle Providence of Christ toward the Church and His divine promises⁸—he would fall from pontifical power *by that very fact* of heresy, “since by his own will he would transfer himself outside the body of the Church, having become unfaithful.” Then the Council [Church] would have only the right to declare the see vacant, so that the customary electors could safely proceed to an election⁹.

c) *Not by reason of a doubtful Pontiff*: The Fathers of Constance simply established that a doubtful Pontiff is subject to the judgment of the Church, according to that principle: “A doubtful Pope is no Pope.” Furthermore, “this is true,” says Franzelin (thesis 13), “this is true only if the doubt and, on account of the doubt, the secession belongs to the *entire* Church; but it cannot be admitted if, after a Pontiff has been legitimately established, doubts and secessions arise in part of the Church, indeed even in the greater part of the Church, due to introduced disturbances.” Hence, *if the universal Church* secedes from a certain Pontiff, it is an infallible sign, according to what was said above, not that he, formerly Pope, is now deprived of his power by this defection, but that he was *never* a true and legitimate Pontiff, since Christ, faithful in His promises, cannot permit the entire Church to falsely adhere to a Pontiff or to reject the true one.

Regarding other cases, however, the opinion of the most excellent theologians seems to be embraced, who hold that the resolution of doubt concerning the true Pontiff should be sought, not in the power of a council with regard to the deposition of the Pope, but *in the benign providence of God*, which in the future, if it should be necessary, just as in the time of the Great Schism, *with all laws preserved*, will deign to put an end to disturbances.

501. IV. The jurisdiction of the Pontiff is not bound coercively by any purely ecclesiastical decrees or canons. — I say: 1. *coercively*, namely in such a way that the validity of the Pontiff’s acts would depend upon the canons, and by not observing them,

he himself would transgress the precept of a superior; — 2. *by purely ecclesiastical canons*, for the Pontiff is certainly subject to *divine* law, whether it be established by *natural* law or by *positive* law.

This is proven: a) *From the nature of the primacy*: The power conferred by Christ upon Peter is a power uniquely proper to him, absolutely unlimited, most universal, efficacious in itself, and entirely *independent* from *any other power* that is not of God. Therefore, far from being able to be moderated or impeded by ecclesiastical canons, it can also be exercised absolutely with regard to them.

b) *By reason*: These canons proceed either from *bishops* without the Pope, and they do not bind him, since a superior is not bound by an inferior; — or from *the Pope himself*, nor do they oblige him, because no one has coercive power over himself; nor do they bind successors who possess the same authority; — or from *the Pope together with bishops*, nor do they have greater force against him than if they proceeded from him alone¹⁰.

Nevertheless, they have *directive* force upon the Pope, insofar as he acts *honorably* and *rightly* fulfills his office by following them. Indeed, he would not act lawfully by changing or abrogating them arbitrarily and without any reason. For natural and divine law demands that the Pope, who by office ought to procure the good of the Church, should carry out canons promulgated for this end, as long as entirely different and new conditions and circumstances do not arise which require their abrogation or change.

502. V. The Church also exercises beneficial influence upon outsiders and dissidents through her teaching authority and jurisdiction¹¹. — 1. The soul of the Church, namely the Holy Spirit, can pour forth *divine life* and actually does pour it forth into many people who belong to the Catholic Church *only mentally or invisibly or by desire*, and who live either among pagans or among dissidents [Protestants, Orthodox, or Greco-Russians].

2. Likewise, although the infallible magisterium of the Church is the regular means instituted by God for proposing revelation in its *entirety* and *without error*, nevertheless, through many *other ways*, with relatively sufficient motives of credibility¹², revelation can be proposed to men *of good will*, even by heretics and schismatics, provided that this proposition retains at least that minimum of truth which the Apostle teaches must be explicitly believed by necessity of means, in Hebrews 11:6: “For he who would approach God must *believe* that he exists and that he rewards those who seek him.” It can indeed happen, and often does occur, that along with true dogmas certain false things are also proposed as if revealed; in such cases, the adult to whom these things are proposed adheres to the true articles with true supernatural infused faith, but gives assent to the false ones only accidentally with merely natural and human faith¹³.

But this proposition of faith which occurs among heretics and schismatics descends in some measure from the chair of the Catholic Church: a) because whatever revealed truth the sects carried away when separating themselves from the true Church, they certainly took it *from the deposit of faith* entrusted to the infallible *Church* alone; b) because the continuous *preaching* of the Catholic Church still greatly influences the *preservation of these remnants of faith* among dissidents, and also, at least indirectly, *nourishes the preaching* of all churches which call themselves Christian. And by this reasoning, the Catholic Church, even among dissidents and outsiders, spreads the message of truth and thus *makes the way of salvation easier* for them.

3. It is also evident that pontifical documents on social matters, on Catholic Action, etc., and the practical norms issued by the Church concerning worship, moral life, etc., exercise great influence *on all churches* and not only on the Catholic Church.

Pars II, Caput III, Articulus III, 3° De factis dogmaticis

514. The Notion of a Dogmatic Fact. — A *dogmatic* fact in general is any *fact* which is not revealed *in itself*, but is so *connected with dogma* that it is necessary for recognizing, preserving, explaining, or properly presenting dogma. *Three* types can be distinguished: 1. primarily *historical*, by which the rule of faith is recognized, e.g., the legitimacy of some ecumenical council or of a Pope; 2. *doctrinal*, such as a judgment concerning the meaning of some book in relation to faith; 3. *hagiographical*, such as the canonization of saints.

We speak only of the last two in the present discussion, since the infallibility of the Church regarding the first naturally flows from what has been said above concerning councils, the Pope, and the indefectibility of the Church itself. “For what would it profit to profess in the abstract the infallible authority of ecumenical councils (or of Roman Pontiffs), if it were permitted to doubt the *legitimacy* of any council” or Pope?¹⁴

515. The Church is infallible in judging the meaning of a book as it relates to faith [*Theologically certain*]. — The Church judges not the *purely subjective* meaning of the author, which perhaps remained hidden in the author’s mind, but rather the objective and apparent meaning which the words themselves convey, and which the author must have intended if, knowing the significance of the words, he spoke *sincerely*. This judgment therefore concerns *these two aspects*: 1. whether such doctrine *is conformable* to right faith or not (question of law); 2. whether this doctrine *is contained* in such a book (question of fact).

That the Church is infallible in judging both of these matters is *proven*:

a) From the very nature of infallibility: For the Church is infallible in questions of *law*, as all concede; but unless it were also infallible in questions of *fact*, it could neither preserve the deposit of faith intact nor effectively safeguard the faithful from errors, and its infallibility would be entirely vain and illusory, since anyone could spread false doctrines with impunity and escape condemnation by saying that the Church had not correctly understood the meaning of his book. Therefore.

b) From the practice of the Church: The Church does not err in determining the object of its infallibility. And indeed, from ancient times, the Church has pronounced infallible judgment concerning the orthodox or heterodox doctrine of many writers, imposing it upon all the faithful as *definitive and absolute*; for example, the *Nicene* Council condemned *Arius’s book*, which was entitled “*Thalia*”; the *Ephesian* Council rejected *Nestorius’s writings* and approved *Cyril’s works*; the Second Council of *Constantinople* proscribed the *three chapters*; the Council of *Constance* ordered that anyone suspected of the errors of *Wycliffe, Jerome of Prague, and Huss* be questioned: “whether he believes that the condemnations... made of their persons, books, and documents were properly and justly made, and should be *held and firmly asserted as such by every Catholic*”¹⁵.

Pius IX declared the doctrine asserted by *Frohschammer* to be alien to the Doctrine of the Church, deserving of reproof and condemnation. Likewise, Leo XIII confirmed the decree of the *Holy Office*, by which it “judged that the propositions of A. *Rosmini* were to be reproved and proscribed in the proper sense of the author”¹⁶.

c) Especially from the case of Jansenius: 1. Jansenius, in his book “Augustinus,” expounds and defends various errors as though they were the doctrine of St. Augustine. Innocent X, in 1652, condemned five propositions extracted from the book as heretical¹⁷. 2. The Jansenists, to evade condemnation, distinguished between questions of *law* and *fact*, and contended that these propositions, taken *in themselves*, were *rightly* proscribed, but that *in fact*, the condemned doctrine was not contained in the book “Augustinus.” 3. But Alexander VII defined, in 1656, that these propositions had been condemned “in the sense intended by Jansenius himself” and imposed, in 1665, a formula by which the same was expressed; when the Jansenists still did not acquiesce, Innocent XII, [1694 and 1696] again declared that the propositions of Jansenius were condemned in their *obvious* sense¹⁸.

4. When the Jansenists maintained that internal assent to this definition was *not* required but that “*religious silence*” was sufficient, Clement XI, in 1705, decreed that “the *sense* of Jansenius’ book condemned in the five propositions, which their words manifest, as stated, must be rejected and condemned by all the faithful of Christ as *heretical*, not only with the *mouth*, but also with the *heart*”¹⁹.

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1. {org. 1} D. 717 ; cf. art. 2 *Decl. Cler. gallic.*, D. 1323 ; synod. *Pist.*, D. 1598-1599 ; *Vat.*, s. 4, cp. 3 ; D. 1827.↵
 2. {org. 2} Franzelin, *De Eccl.* th. 13.↵
 3. {org. 3} D. 657, in nota.↵
 4. {org. 1} D. 657, n. 2 ; 717, 740.↵
 5. {org. 2} *Summa concerning the Church* book 2, 99.↵
 6. {org. 3} Journet, volume 1, Excursus 7 and 8.↵
 7. {org. 4} Salembier, *The Great Western Schism*, p. 361, 379; *Apologetic Dictionary*, article on the Western Schism, col. 1238-1240; A. Baudrillart, *Theological Dictionary*, article on Constance (Council of), col. 1209, 1220; Franzelin, thesis 13, Scholion, p. 230 ff.; Noel Valois, *France and the Great Schism*, 4 volumes, Paris, 1896-1902; especially volume 4, p. 502; E. Vansteenberghe, *Theological Dictionary: Western Schism*, col. 1484-1490.↵
 8. {org. 1} Cf. Dublanchy, *Theological Dictionary*, article on Papal Infallibility, col. 1714-1717.↵
 9. {org. 2} Cf. Innocent III, *Sermon 4, on the consecration of the pontiff*; Friend of the Clergy, 1937, p. 422; Cajetan, *On the Comparison of the Authority of the Pope and the Council*, chapter 27, n. 417-422.↵
 10. {org. 3} Nicholas I, *Letter to Emperor Michael*; Boniface VIII, Bull “*Unam Sanctam*,” November 18, 1302; article 3 of the *Declaration of the Gallican Clergy*; *Vatican* [Council I], session 4, chapter 3; D. 333, 469, 1324, 1830.↵
 11. {org. 1} Cf. Vatican Council [I], session 3, chapters 3 and 4; D. 1793, 1821.↵
 12. {org. 2} Cf. n. 372.↵

13. {org. 3} Cf. n. 226.↵
14. {org. 1} Van Noort, n. 89; cf. D. 212, 657, 658, 674, etc.↵
15. {org. 1} D. 214-247, 225, 387, 659 sq.↵
16. {org. 2} D. 1667, 1669, 1673, 1675; D. 1930 a.↵
17. {org. 3} D. 1092 sq.↵
18. {org. 4} D. 1098, 1099 and n. 3.↵
19. {org. 1} D. 1350. Concerning these matters, cf. *Dict. théol.* [Dictionary of Theology], art. Jansenism, col. 500-522; art. Quesnel, col. 1467 sq., 1500 sq.; Zapelena, vol. 2, p. 238 sq.↵